

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ROGER SMITH,

INDEX NO.: 26042/2020

Plaintiff,

AMENDED VERIFIED

-against-

COMPLAINT

CITY OF NEW YORK; JESUS MONTESINO; JENNY
PACHECO; NIKAURI TERRERRO; VICTOR VELEZ;
TYNISHIA STEWART; JOHN AND JANE DOE TWO
THROUGH SEVEN; THE DEPARTMENT OF
HOMELESS SERVICES,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff ROGER SMITH, by his attorneys, DEVERNA LAW, as and for his AMENDED
VERIFIED COMPLAINT herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of a May 27, 2019, incident, in which defendants acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate cause, Plaintiff was unlawfully detained within the New York City Police Department within the jurisdictional confines of Bronx County, New York. Plaintiff was falsely charged with multiple crimes including Trespass. Plaintiff was deprived of his liberty for

several hours and suffered serious and emotional injuries. He was maliciously prosecuted, until his dismissal.

3. Plaintiff in furtherance of their cause of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK within ninety (90) days of the accrual dates for these claims, in compliance with the Municipal Law Section 50 and in accordance with New York State law.
4. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims or otherwise resolved them.
5. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
6. This action and all associated claims have been timely brought within the applicable statutes of limitations.
7. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
8. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

9. Plaintiff ROGER SMITH is a resident of the state of New York.
10. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.

11. At all times relevant hereto, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
12. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
13. Defendant JESUS MONTESINO, was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant HONTESINO was, at the time relevant herein, a police officer in the 42nd precinct. Defendant HONTESINO is sued in his individual and official capacities.
14. Defendant JENNY PACHECO, was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant PECHECO was, at the time relevant herein, a police officer in the 42nd precinct. Defendant PACHECO is sued in her individual and official capacities.
15. Defendant NIKAURI TERRERRO, was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant TERRERRO was, at the time relevant herein, a police officer in the 42nd precinct. Defendant TERRERRO is sued in their individual and official capacities.

16. Defendant VICTOR VELEZ, was, at all times here relevant, a lieutenant police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant VELEZ was, at the time relevant herein, a sergeant police officer in the 42nd Precinct. Defendant VELEZ is sued in his individual and official capacities.
17. At all times relevant herein, Defendant TYNISHIA STEWART was acting as an agent servant and employee of the City of New York and THE DEPARTMENT OF HOMELESS SERVICES. Defendant STEWART is sued in their individual and official capacities.
18. At all times relevant Defendant STEWART was a supervisor, policy makers and/or officials employed by the Department of Homeless Services. Defendant STEWART is sued in her individual and official capacities.
19. At all times relevant Defendants John and Jane Doe 2 through 7 were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 2 through 7, but such information is believed to be in the possession of the defendants.
20. At all times relevant herein, Defendants John and Jane Doe 2 through 7 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 2 through 7 are sued in their individual and official capacities.
21. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the Department of Homeless Services and for ensuring that the Department of Homeless Services personnel obey the laws of the United States and the State of New York.

22. At all times here the mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

FACTUAL CHARGES

24. On May 27, 2019, at approximately 2:00AM, Plaintiff was in the vicinity of Robert's Men's Shelter located at 1068 Franklin Avenue, Bronx, New York
25. Plaintiff was lawfully present in the area and not obstructing pedestrian or vehicle traffic or otherwise committing any criminal offense, when he had his rights violated
26. Plaintiff was a resident of the shelter on June 5, 2020.
27. Plaintiff had signed in for the nightly count and had gone outside to smoke a cigarette as is permitted.
28. Plaintiff had gone outside on approximately two or three occasions throughout the night to smoke cigarettes after sign-in, and was able to reenter the premises without issue.

29. As Plaintiff returned after smoking his last cigarette, a female employee of Robert's Men's Shelter, TYNISHIA STEWART, informed him he could not re-enter the building, and that he had lost his bed and was being transferred to another shelter.
30. Plaintiff explained that he had signed in and wanted to return to his bed.
31. Defendant TYNISHIA STEWART refused to allow him to enter the building.
32. Plaintiff's roommate witnessed the conversation and indicated to the employee that Plaintiff lived in the building.
33. Plaintiff attempted to return to his bed in a calm manner, and TYNISHIA STEWART stopped Plaintiff and called the police.
34. Defendant Officers, including JESUS MONTESINO, JENNY PACHECO; NIKAURI TERRERRO; VICTOR VELEZ; AND JOHN AND JANE DOE TWO THROUGH SEVEN; arrived on the scene as Plaintiff was waiting outside the building
35. Defendant Officers approached Plaintiff and he informed them that he lived at the location.
36. Defendant TYNISHIA STEWART told Defendant Officers that Plaintiff had not signed in.
37. A Defendant Officer looked at the sign in sheet and indicated that Plaintiff had signed in
38. A Defendant Officer and TYNISHIA STEWART spoke and TYNISHIA STEWART told Plaintiff that he had to leave.
39. Defendants, thereafter, including JESUS MONTESINO, JENNY PACHECO; NIKAURI TERRERRO; VICTOR VELEZ; AND JOHN AND JANE DOE TWO THROUGH SEVEN, acting in concert, handcuffed Plaintiff in an excessively tight manner and brought Plaintiff to the Precinct.

40. Plaintiff was, thereafter, arrested without probable cause and falsely charged with trespass (Arrest # B19622390), and other charges.
41. Plaintiff did not resist arrest.
42. The Defendants did not observe Plaintiff committing any crime or violating any law or local ordinance.
43. Defendants did not have probable cause or reasonable suspicion to detain or arrest Plaintiff.
44. Based on information and belief, a Defendant supervisor, was present on the scene and did not stop the unlawful arrest of Plaintiff.
45. Several Defendants who did not participate in the incident, but were otherwise present and observed the violation of Plaintiff's constitutional rights failed to intercede on Plaintiff's behalf.
46. Defendants searched Plaintiff's person without his authority or permission.
47. Defendants then placed Plaintiff into an NYPD vehicle and drove to the 46th Precinct
48. At the 46th Precinct, Plaintiff was subjected to an intrusive search of his person during which officers put their hands near Plaintiff's pubic area.
49. Plaintiff was unlawfully detained at the 46 Precinct for approximately four (4) hours.
50. At his initial court appearance, Defendant's had failed to file the legally acceptable accusatory instruments with the court and the matter was resolved in Plaintiff's favor.
51. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiff and violate his civil rights.
52. At all times relevant hereto, Defendants were involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of his fellow officers when they observed them arresting Plaintiff without probable cause.

53. At all times relevant hereto, Defendants were involved in the decision to violate Plaintiff's civil rights, including falsely arresting Plaintiff, and failed to intervene in the actions of their fellow officers.
54. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

55. The above paragraphs are here incorporated by reference as though fully set forth.
56. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
57. Plaintiff was conscious of his confinement.
58. Plaintiff did not consent to his confinement.
59. Plaintiff's arrest and false imprisonment was not otherwise privileged.
60. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

62. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

63. The above paragraphs are here incorporated by reference as though fully set forth.
64. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
65. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
66. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
67. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
70. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

71. The above paragraphs are here incorporated by reference as though fully set forth.

72. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of his constitutional right to be free from malicious prosecution under Common Law, the Laws of the State of New York and the New York Constitution.
73. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.
74. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
75. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Malicious Prosecution

Under 42 U.S.C. §1983 Against Individual Defendants

78. The above paragraphs are here incorporated by reference as though fully set forth.
79. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
80. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.

81. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
82. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
84. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Failure to Intervene
New York State Law

85. The above paragraphs are here incorporated by reference as though fully set forth.
86. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
87. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
88. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Failure to Intervene
Under 42 U.S.C. § 1983 Against Individual Defendants

89. The above paragraphs are here incorporated by reference as though fully set forth.

90. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
91. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process
Under New York State Law

93. The above paragraphs are here incorporated by reference as though fully set forth.
94. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
95. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
96. Defendant intended to inflict substantial harm upon Plaintiff.
97. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
98. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process
Under 42 U.S.C. § 1983 Against Individual Defendants

100. The above paragraphs are here incorporated by reference as though fully set forth.
101. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
102. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
103. Defendant intended to inflict substantial harm upon Plaintiff.
104. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
105. Defendant's actions deprived plaintiff of his constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under New York State Law

107. The above paragraphs are here incorporated by reference as though fully set forth.
108. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
109. Defendant City breached that duty of care.
110. Defendant City placed defendants in a position where they could inflict foreseeable harm.
111. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

112. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
114. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Municipal "Monell" Liability
42 U.S.C. § 1983 Against Individual Defendants

115. The above paragraphs are here incorporated by reference as though fully set forth.
116. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
117. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
118. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
119. Defendant City, its policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's deliberate indifference towards the rights of those who may come into contact with defendant City's employees.

120. Defendant City's employees engaged in such a egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to his display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
121. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.
122. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United stated pursuant to the Fourth, Sixth, and Fourteenth and under rights including:
- a) Not to be deprived of liberty without due process of law;
 - b) To be free from seizure and arrest not based upon probable cause;
 - c) To be free from excessive force;
 - d) Not to have summary punishment imposed upon him; and
 - e) To receive equal protection under the law.
123. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

JURY DEMAND

124. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

- l) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
April 13, 2022



DEVERNA LAW
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ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 13, 2022



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SEVEN; THE DEPARTMENT OF HOMELESS SERVICES.

Defendants.

AMENDED SUMMONS AND COMPLAINT (AMENDED) VERIFIED

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for